

Rejecting and returning products

A consumer must tell the supplier if they intend to reject products, and explain why the products are being rejected. They must:

- return the rejected products to the supplier, or
- ask the supplier to collect the rejected products, if the products cannot be returned without significant cost to the consumer.

Consumers have the same legal rights to a refund, repair or replacement whether or not the goods are returned in the original packaging or wrapping.

Rejecting a product after agreeing to repairs

Sometimes, a consumer may request or agree to the repair of a product with a major failure - for example, because they did not know they were entitled to a refund or replacement.

If so, the consumer does not lose their right to a refund or replacement. The problem with the product is still 'major', so they may still reject and return the product at any time.

For more information on what is a major problem, view [Faulty product](https://www.consumer.vic.gov.au/consumers-and-businesses/products-and-services/problems-with-a-product/faulty-product) (<https://www.consumer.vic.gov.au/consumers-and-businesses/products-and-services/problems-with-a-product/faulty-product>).

When a consumer cannot reject products

A consumer cannot reject products if:

- the products have been thrown away, destroyed, lost or damaged through no fault of the supplier, after delivery to the consumer
- the products have been attached to other property and cannot be removed without damage. For example, removing wallpaper will damage it
- too much time has passed. The right to reject the products runs from the date of supply to the consumer, until the fault or problem would reasonably be expected to appear. This depends on:
 - the type of product
 - how a consumer is likely to use the product
 - the length of time the product could reasonably be used, and

- the amount of use the product could reasonably be expected to tolerate before the problem or fault became apparent.

Even if the consumer has lost the right to reject the product, they may still keep it and ask for, or by action against the trader recover, compensation for any drop in the product's value.

Who is responsible for returned product?

When the consumer tells the supplier they are returning the product, it becomes the supplier's property.

The consumer must return the product to the supplier unless the cost of returning, removing or transporting it is significant; for example, due to the:

- size or height of the product, or the way it is installed (if any)
- type of problem with the product. For instance, a consumer would not usually be able to remove a light fitting that has melted and stuck to a wall.

If the cost to the consumer would be significant, the supplier must collect the product at their own expense and within a reasonable time.

Examples of products a supplier would have to collect:

- a 127 cm LCD TV
- a bed
- a swimming pool filter connected to a pool by fixed pipes
- an extension ladder stuck in the extended position.

Disputes

If you are having a dispute with the store or seller about a problem with a product, view [Resolve your problem](https://www.consumer.vic.gov.au/contact-us/resolve-your-problem) (<https://www.consumer.vic.gov.au/contact-us/resolve-your-problem>).

Last updated: 13 October 2023



We acknowledge the Traditional Owners of the lands, seas and skies. We pay our respects to their Elders past and present, and to future generations who will continue to care for Country.



(<https://www.consumer.vic.gov.au/resources-and-tools/yarrka-barring-resources-for-first-nations-people>)

© State Government of Victoria (Consumer Affairs Victoria)